

This case has been designated as an eFiling case, for more information please visit www.oakgov.com/efiling.

STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF OAKLAND

FG AGENCY LENDING LLC, a
Delaware limited liability company,

Plaintiff,

v

WDB HOLDING MI, INC., a Delaware corporation;
SPARTAN PARTNERS CORPORATION, a Michigan
corporation; SPARTAN PARTNERS HOLDINGS,
LLC, a Michigan limited liability company; SPARTAN
PARTNERS SERVICES LLC, a Michigan limited
liability company; SPARTAN PARTNERS
PROPERTIES LLC, a Michigan limited liability
company; SPARTAN PARTNERS LICENSING LLC, a
Michigan limited liability company; AEY HOLDINGS,
LLC, a Michigan limited liability company; AEY
CAPITAL LLC, a Michigan limited liability company;
THRIVE ENTERPRISES LLC, a Michigan limited
liability company,

Defendants.

Case No. 2026-222791-CB
2026-222791-CB
Hon. JUDGE MICHAEL WARREN
MICHAEL WARREN

**STIPULATED ORDER
FOR APPOINTMENT
OF RECEIVER**

DICKINSON WRIGHT PLLC

Benjamin Sobczak (P73567)
Kaitlyn Elias (P82957)
2600 W. Big Beaver Rd., Suite 300
Troy, MI 48084
(248) 433-7200
BSobczak@dickinson-wright.com
KElias@dickinson-wright.com

Jared Christensen (P83052)
Elle Kersten (P87856)
500 Woodward Ave, Suite 4000
Detroit, MI 48226
(313) 223-2500
JChristensen@dickinson-wright.com
EKersten@dickinson-wright.com

Attorneys for Plaintiff

STIPULATED ORDER FOR APPOINTMENT OF RECEIVER

At a session of the Court held in the City of Pontiac, County of Oakland, State of Michigan on 5/6/2026

HON. MICHAEL WARREN
CIRCUIT COURT JUDGE

WHEREAS, Defendants WDB Holding MI, Inc., Spartan Partners Corporation, Spartan Partners Holdings LLC, Spartan Partners Services LLC, Spartan Partners Properties LLC, Spartan Partners Licensing LLC, AEY Holdings LLC, AEY Capital LLC, and Thrive Enterprises LLC (collectively, the “Defendants” or “Michigan Entities”) and Plaintiff, FG Agency Lending LLC, a Delaware limited liability company (“Plaintiff” or “FG”), acting as administrative agent for the Secured Lenders thereto,¹ are each party to the Loan Documents. The indebtedness of Borrowers represented thereby is also guaranteed by CAN-Parent, an Ontario publicly traded corporation;

WHEREAS, in June of 2025, CAN-Parent announced the Michigan Entities (among others) would discontinue operations in this state, and would thereafter attempt to liquidate the assets associated with those operations (the “Michigan Exit”);

WHEREAS, pursuant to the Loan Documents and on behalf of the Secured Lenders, FG holds a first-priority security interest over the assets indirectly owned and controlled by the Loan Parties, including those of the Michigan Entities, and so FG imposed upon the Michigan Entities, along with US-Parent and CAN-Parent, various conditions relative to the Michigan Exit;

WHEREAS, FG reasonably considers the Third-Party Litigations spurred by the Michigan Exit to be a threat to its interest in the Remaining Collateral and thus, directed the Michigan Entities

¹ Except where otherwise provided, proper terms used herein are given the same meaning as set forth in the Complaint.

to resolve those claims by a date certain to avoid incurring ongoing costs and expenses in connection with the Michigan Exit;

WHEREAS, in that regard, FG and the Michigan Entities entered into the April 2026 Letter Agreement through which the Michigan Entities agreed to the initiation of receivership proceedings in this Court if the Third-Party Litigations remained pending as of May 1, 2026;

WHEREAS, in the associated Complaint, FG attached an affidavit from the Michigan Entities summarizing their earnest, but unsuccessful efforts to resolve the Third-Party Litigations, and as of the entry of this Order, the Third-Party Litigations remain pending;

WHEREAS FG resultantly initiated these proceedings asserting a claim for breach of contract against the Michigan Entities and seeking the appointment of a receiver pursuant to this Order;

WHEREAS, as evidenced by their stipulation hereto, FG and the Michigan Entities believe a receivership is necessary to complete the Michigan Exit in an orderly and efficient manner for the collective benefit of all interested parties, including FG (and the lender groups for whom it acts as agent); and

WHEREAS, this Court being otherwise fully advised in the premises, orders as follows:

IT IS HEREBY ORDERED the Court finds good cause for entry of this Order, determines that the appointment of the Receiver (as defined below) is just and appropriate under the circumstances, and determines that the Receiver's authority and duties as set forth herein are both just and appropriate;

IT IS FURTHER ORDERED the Court finds that the grounds set forth in MCL 600.2926, MCL 554.1016 and MCR 2.622 are satisfied for appointment of the Receiver, and that it has jurisdiction over this matter pursuant to, *inter alia*, MCL 600.2926;

IT IS FURTHER ORDERED:

1. Effective and commencing immediately upon the entry of this Order, Charles D. Bullock (P55550) of the firm, Stevenson & Bullock, P.L.C., 26100 American Drive, Suite 500, Southfield, MIC 48034 (the “Receiver”), is hereby appointed Receiver pursuant to, *inter alia*, MCL 600.2926 and MCR 2.622 over Defendants’ assets with full powers as receiver of all of Defendants’ assets and property, real, personal or mixed, tangible and intangible, wherever situated, and all proceeds therefrom, including but not limited to the Remaining Collateral (collectively, the “Receivership Estate”). Pursuant to MCR 2.622(D)(1), the Receiver shall file an acceptance of this appointment (the “Receivership”) within 7 days after entry of this Order and shall otherwise comply with all requirements of MCR 2.622(D).

2. The Receiver is further authorized to exercise all powers and authority generally available under the laws of the State of Michigan that may be incidental to the powers described in this Order and reasonably necessary to accomplish the purpose of this Receivership. The Receiver shall have such additional powers that may be provided by law and that the Court may from time to time direct or confer.

3. Without limiting the foregoing, the Receiver shall have the power to employ and/or contract with professionals and others, including but not limited to counsel, financial advisors, accountants, brokers, assistants, agents, private investigators, consultants, advisors, realty professionals, and other third-parties (collectively, the “Professionals”) as he deems necessary to carry out his duties. The Receiver may pay any and all of the Professionals from the Receivership Estate.

4. Plaintiff and Defendants shall make available to the Receiver for inspection and copying all records concerning the Receivership Estate, as shall be necessary for the Receiver to

fulfill his duties under the terms of this Order. Further, Plaintiff and Defendants, and their agents and employees, shall fully cooperate with the Receiver at all times during the pendency of the Receivership.

BASIS FOR AND PURPOSE OF RECEIVERSHIP

5. Pursuant to MCR 2.622(A), the Court finds there is good cause for the appointment of the Receiver in this matter for the following reasons:

- a. This action involves the necessary maintenance and disposition of the Receivership Estate which serves as security for substantial indebtedness due and owing to FG (and the Secured Lenders) from Borrowers, including the Michigan Entities, with CAN Parent as guarantor.
- b. The above noted indebtedness is secured by FG's first priority security interest in the Receivership Estate, demonstrated by the Loan Documents, the UCC-1s and the FG Mortgages, evidence of which is exhibited to the pleadings in this matter.
- c. FG reasonably believes that the pending Third-Party Litigations threaten its interest in the Receivership Estate and compelled the Michigan Entities to resolve those matters by a date certain to avoid incurring ongoing costs and expenses in connection with the Michigan Exit.
- d. Pursuant to the Loan Documents including, most specifically, the April 2026 Letter Agreement exhibited to the associated pleadings, the Michigan Entities, US-Parent and CAN-Parent collectively consented to appointment of the Receiver upon an event of default as described therein.
- e. The Third-Party Litigations remained after the passage of the relevant deadline set forth in the April 2026 Letter Agreement, and consistent therewith, the Michigan Entities

have stipulated, through counsel, to appointment of the Receiver as shown by their respective signatures set forth below.

- f. Appointment of the Receiver is otherwise proper pursuant to MCL 600.2926 and MCL 554.1016 under the circumstances described above, in order to take control over the Receivership Estate, preserve and prevent dissipation of assets, prevent further waste, maximize the Michigan Entities' remaining value, allow for the orderly disposition of the Receivership Estate, and give proper recognition to FG's rights under the Loan Documents.

DESCRIPTION OF RECEIVERSHIP ESTATE

- 6. Pursuant to MCR 2.622(C)(2), the Receivership Estate includes:
 - a. The Remaining Collateral including, without limitation: (i) 3821 & 3825 Stadium Drive, Kalamazoo, MI 49008, including all personal property located within the premises; (ii) 4174 & 4178 W. Pierson Rd. Mt. Morris, Michigan 48504; (iii) 421 S. Main St. Camden, Michigan 49232, including all personal property located within the premises; (iv) 2704 & 2706 Portage St. Kalamazoo, Michigan 49001, including all fixtures located within the premises; and (v) the Monitor Facility located at 391 Midland Rd. Monitor Township, Michigan 48706, including certain personal property as outlined in the operative sublease associated therewith.
 - b. All tangible and intangible property owned by Defendants and used or useable in connection with the Remaining Collateral including, without limitation, insurance premium refunds, insurance proceeds, condemnation awards, utility

deposits and deposits of every other kind, causes of action, drawings, plans, specifications, escrow agreements, and other personal property.

- c. All “Income” which means, with respect to the Receivership Estate, collectively, all cash, cash on hand, checks, cash equivalents, credit card receipts, demand deposit accounts, bank accounts, cash management or other financial accounts, bank or other deposits, and all other cash collateral (all whether now existing or later arising); current and past-due earnings, revenues, issues and profits, accounts, and accounts receivable (all whether unpaid, accrued, due, or to become due); all claims to rent, CAM charges, issues, profits, income, cash collateral, or payments made pursuant to any Remaining Collateral or previously owned real property of Defendants; and all other gross income derived with respect to the Remaining Collateral or business operations at the Remaining Collateral, regardless of whether earned before or after entry of this Order.
- d. All books, records, accounts, and documents that in any way relate to the Remaining Collateral or Income.
- e. Any refund or reimbursement of taxes, whether for taxes paid by the Receiver or Defendants, and whether pertaining to any tax period before or after the entry of this Order, and the right to institute or constitute any contest, protest, or appeal of any ad valorem tax or assessment, real estate tax, personal property tax, or other tax or assessment pertaining to the Receivership Estate.
- f. All fixtures, trade fixtures, and tenant improvements of every kind or nature located in or upon or attached to or used or intended to be used in connection

with the Remaining Collateral and any buildings, structures or improvements located thereupon (to the full extent of Defendants' interest in such).

- g. All permits, licenses, and contracts pertaining to the Remaining Collateral, including any municipal permits or state licenses issued under the Acts or otherwise associated with Defendants' current or prior business operations conducted in the State of Michigan.
- h. All books, records, accounts, and documents that in any way relate to the Remaining Collateral, Income or Defendants, generally.
- i. All other property, estate, right, title and interest as described in the Loan Documents and owned by Defendants.

NOMINATION AND QUALIFICATIONS OF RECEIVER

7. Pursuant to MCR 2.622(B)(1), Plaintiff has nominated the Receiver, Charles Bullock of Stevenson & Bullock, P.L.C. to act as Receiver of the Receivership Estate and has demonstrated to the Court's satisfaction that the Receiver has sufficient competence, qualifications, and experiences to administer the Receivership Estate, considering the factors set forth in MCR 2.622(B)(5).

8. Plaintiff has further demonstrated to the Court's satisfaction that the Receiver is independent, not conflicted, and not otherwise disqualified from serving as a receiver in this matter pursuant to MCR 2.622(B)(6). *Id.*

POWERS OF THE RECEIVER

9. The Receiver is authorized and directed to take immediate possession and full control over the Receivership Estate, and to take such further actions as the Receiver deems reasonable and appropriate to prevent waste, and to preserve, manage, secure, and safeguard the

Receivership Estate and maximize the value of the Receivership Estate. The Receiver, in the exercise of his business judgment, shall be empowered, but not obligated, to:

- a. Preserve, hold, and manage the Receivership Estate, and perform all acts necessary to preserve its value, to prevent any loss, damage, or injury;
- b. Prevent the withdrawal or misapplication of funds;
- c. Sue for, collect, receive, and take possession of all goods, chattels, rights, credits, moneys, effects, land, leases, documents, books, records, work papers, and records of amounts, including electronically stored information and other papers of Defendants;
- d. Initiate, petition, defend, compromise, adjust, intervene in, dispose of, or become a party to any actions or proceedings, in any court of competent jurisdiction, including state and federal, or foreign court(s) necessary to preserve the Receivership Estate or to carry out his duties pursuant to this Order;
- e. Issue subpoenas to obtain documents and records pertaining to the receivership and conduct discovery in this action on behalf of the Receiver; and
- f. Open one or more bank accounts as designated depositories for funds of Defendants. The Receiver may deposit all funds of Defendants in such designated accounts and shall make all payments and disbursements from the Receivership Estate from such accounts.

10. The Receiver is authorized to exercise any and all powers set forth in MCR 2.622(E). Without limiting the foregoing, the Receiver is authorized, without further Court Order:

- a. To maintain, secure, manage, operate, repair, and preserve the Receivership Estate, directly or through agent(s) contracted for that purpose;

- b. To assume control over the Receivership Estate and to collect and receive all Income, to take possession of all accounts held at all banks, brokerage firms, and other financial institutions (collectively, the “Financial Institutions”) belonging to the Entities or otherwise holding any portion of the Receivership Estate, whether such funds are in accounts titled Defendants’ name(s) or otherwise, and all other Income derived with respect to the Receivership Estate or business operations of the Receivership Estate;
- c. To sign as Receiver, on behalf of the Defendant, any checks, bank accounts, drafts, stocks, bonds, vehicle titles, or other instruments of title and said signature shall have the same legal effect as had an authorized individual signed same on behalf of Defendants;
- d. To pay any real estate taxes as funds are available and any other taxes or assessments against the Receivership Estate which the Receiver deems appropriate and necessary for preservation of the Receivership Estate; and, to contest, protest or appeal any tax or assessment pertaining to the Receivership Estate. (Any refund or reimbursement of taxes paid shall be deemed “Income” to be applied as provided below);
- e. To oversee the operation and management of the business of Defendants, including the wind-down of Defendants’ and/or the efforts to market and sell Defendants’ assets separately, or as a going concern, to maximize value;
- f. To operate, control, and manage, any and all entities to which Defendants have a controlling or majority interest;

- g. To exercise all rights reserved or granted to Defendants under any mortgage, other contract, or under Michigan law or Federal law;
- h. To reject any unexpired contracts, agreements, or leases of Defendants that are burdensome on the Receivership Estate, and/or which the Receiver believes are not in the best interest of the Receivership Estate;
- i. To execute, cancel, abrogate, renegotiate, or modify any and all existing vendor, supply, maintenance, lease, management, and/or other agreements and contracts related to the Receivership Estate;
- j. To investigate any previous transfer or financial transactions relating to Defendants or the Receivership Estate to determine whether any such transactions were potentially fraudulent and/or avoidable under applicable law. The Receiver is also authorized to pursue recovery of any such fraudulent transfers or avoidable transactions in accordance with applicable law;
- k. To open a new bank account on behalf of Defendants in order to control all cash revenue disbursements of Defendants, into which the Receiver shall deposit any cash which may currently be held in Defendants' existing accounts, and to make all payments and disbursements from the new bank account;
- l. To (i) issue subpoenas to obtain documents and records pertaining to the Receivership Estate and/or any of Defendants or otherwise (ii) conduct discovery in this action;
- m. To defend, institute, and prosecute suits or summary proceedings related to the Receivership Estate and/or Defendants with respect to the duties imposed on the Receiver by this Order and/or applicable law;

- n. To review any/and all existing vendor, supply, maintenance, lease, management, and/or other agreements and contracts related to the Receivership Estate, and to determine which, if any, Receiver will assume;
- o. To enforce any valid covenant of any contract and/or other agreement related to the Receivership Estate;
- p. To negotiate and execute any/and all new vendor, supply, maintenance, lease, management, and/ or other agreements and contracts related to the Receivership Estate;
- q. For the Receivership Estate, which is not covered by insurance under any applicable mortgage, to determine that the property is adequately insured or to procure insurance if funds are available for that purpose. The insurance companies shall accept a copy of this order and add the Receiver as an Additional Insured to all such policies that cover any of the Receivership Estate;
- r. Investigate the amount owed, historical payment information, escrow account balances and insurance coverage, obtain payoff statements and extent of any liens on the Receivership Estate as of the date of creation of the receivership estate by entry of this Order; and, to pay lien claimants as reasonably necessary for the release of any part of the Receivership Estate, or to facilitate a sale of any part of the Receivership Estate;
- s. To change any and all locks to the Receivership Estate and, if appropriate, limit access to some or all of the Receivership Estate;
- t. To exercise all powers and authority generally available under applicable law that may be incidental to the powers described in this Order or reasonably

necessary to accomplish the purpose of the Receivership, provided that the exercise of such power and authority and any actions taken by the Receiver shall be done in good faith and in accordance with all applicable laws; and

- u. To apply to the Court on motion for amendments to this Order or for such further directions or powers as the Receiver may reasonably deem necessary to carry out the purpose of maximizing the value of the Receivership Estate.

11. Pursuant to further Order(s) of the Court, the Receiver is additionally authorized:

- a. To sell and/or liquidate the Receivership Estate, outside the ordinary course of business, free and clear of liens, in any order or manner the Receiver deems advisable, and to distribute the proceeds therefrom to discharge mortgages, current real property or personal property taxes, to acquire and pay for title insurance, and to retain and pay commissions for real estate brokers. Plaintiff is authorized to credit bid up to the full amount of its outstanding indebtedness pursuant to MCL 554.1026(5). Prior to selling any part of the Receivership Estate outside the ordinary course of business, the Receiver first shall obtain an order from the Court approving the sale; and
- b. To abandon or otherwise dispose of some or all of the Receivership Estate by surrendering possession of some or all of the Receivership Estate to Plaintiff.

12. The authority granted to the Receiver is self-executing unless the action requires approval by this Court. Unless the action requires approval by this Court, the Receiver is authorized to act on behalf of Defendants and the Receivership Estate with respect to the Receivership Estate or in the Receiver's name without further order of this Court and without personal recourse against the Receiver.

STAY AND INJUNCTIVE PROVISIONS

13. This Order operates as a stay of: (a) the commencement or continuation of any action, including but not limited to, the issuance or employment of process of a judicial, administrative, or other action or proceeding which would in any way transfer title to, encumber title to, or operate as a lien against the Receivership Estate or to recover upon a claim against Defendants via execution against or levy upon the Receivership Estate wherever located; (b) the enforcement against the Receivership Estate or Defendants of any judgment obtained before the date of this Order; (c) any act to obtain possession of the Receivership Estate or to exercise control of the Receivership Estate, including but not limited to judgment debtor examinations, garnishments and orders to seize property; (d) any act to create, perfect, or enforce any lien against the Receivership Estate; (e) create, perfect, or enforce against the Receivership Estate any lien to the extent that such lien secures a claim that arose before the date of this Order; and/or (f) any act of interference with the Receiver's management and control of the Receivership Estate.

14. Notwithstanding anything to the contrary above, pursuant to MCL 554.1024(4)(a), this Order shall not prohibit or restrict Plaintiff from foreclosing or otherwise enforcing its security interest and/or liens in or upon any aspect of the Receivership Estate as otherwise allowed under applicable law.

15. All Financial Institutions are directed to unfreeze (to the extent previously frozen) any accounts belonging to Defendants or otherwise holding the Receivership Estate, whether such funds are in accounts titled in Defendants' name(s) or otherwise, and to immediately transfer all such funds to the Receiver. All Financial Institutions are further ordered to stay, cease, and otherwise forgo transferring any funds to any other person other than the Receiver except as authorized by the Receiver or upon further order of this Court. All Financial Institutions are further

ordered to provide the Receiver with such records as the Receiver may request with respect to such accounts. The Receiver may indemnify the Financial Institution upon whom such demand is made, and is empowered to open or close any such accounts. The Receiver shall have the right to give instructions, notices, or directions to the Financial Institutions with respect to the transfer and deposit of funds as necessary for the operation, maintenance, and preservation of the Receivership Estate. Any savings, bank, or similar institutions receiving a copy of this Order shall accept the signature of the Receiver to withdraw any and all funds Defendants have the right to withdraw from said Financial Institution with the same legal effect as had an authorized individual signing the same on behalf of Defendants.

16. Pending further order of this Court, any financial or brokerage institution, business entity, or person that holds, controls, or maintains custody of any account or asset, or at any time has held, controlled, managed, or maintained custody of any account or asset owned by, in the name or for the benefit of Defendants, shall:

- a. Prohibit all other persons other than the Receiver and his authorized agents from withdrawing, removing, assigning, transferring, pledging, encumbering, disbursing, dissipating, converting, selling, or otherwise disposing of any such asset except as directed by the Receiver;
- b. Deny all other persons other than the Receiver and his authorized agents access to any safe deposit box that titled in the name of Defendants either individually or jointly with another person or entity or in which any of the Receivership Estate is located; and
- c. Provide the Receiver, within five (5) business days of receiving a copy of this Order, a statement setting forth:

- i. The identification number of each and every account or asset titled in the name, individually or jointly, of or held on behalf of, or for the benefit of Defendants;
- ii. The balance of each such account, or a description of the nature and value of such asset as of the close of business on the day on which this Order is served, and, if the account or other asset has been closed or removed, the date closed or removed, the total funds removed to close the account, and the name of the person or entity to whom such account or other asset was remitted;
- iii. The identification of any safe deposit box that is either titled in the name of Defendants or jointly with another person or entity or is otherwise subject to access by Defendants; and
- iv. Upon request by the Receiver, promptly provide copies of all records or other documentation pertaining to such account or asset, including, but not limited to, originals or copies of account applications, account statements, signature cards, checks, drafts, deposit tickets, transfers to and from the accounts, and all other debit and credit instruments or slips, currency transaction reports, 1099 forms, and safe deposit box logs.

17. No utility or other vendor may terminate service or the provision of goods to the Receivership Estate or refuse to authorize any new account as a result of the non-payment of pre-receivership obligations without prior order of this Court. Each utility company or entity providing service to the Receivership Estate shall transfer any deposits which it holds for the benefit of Defendants to the exclusive control of the Receiver and shall be prohibited from demanding that

the Receiver deposit additional funds in advance to maintain or secure such service. The Receiver shall not be responsible for any utility bills accruing prior to its appointment as Receiver.

18. Defendants are required to fully cooperate with the Receiver to provide the Receiver the access necessary to operate and manage Defendants and control any portion of the Receivership Estate that may be located at any of Defendants' places of business, including but not limited to the Monitor Facility.

19. Defendants, their agents, officers, managers, representatives, employees, affiliates, parents and subsidiaries, and their respective employees, are ordered to immediately surrender the Receivership Estate to the Receiver and to immediately and fully cooperate in transition of the management of the Receivership Estate to the Receiver, and shall immediately provide to the Receiver accurate and complete information and items pertaining to the Receivership Estate, including but not limited to:

- a. A current aged account receivable/delinquency report.
- b. An aged listing of all trade payables and other payables.
- c. A list of operating expenses for Defendants for the past two years.
- d. Year-end 2021-2025 operating statements, and year to-date 2026 operating statements.
- e. All on-site employee payroll records and employee files and applications.
- f. An inventory of all equipment, furniture, vehicles, and supplies.
- g. All existing contracts.
- h. All pending bids for contracts.
- i. All insurance policies for the Receivership Estate and/or Defendants.

- j. All information regarding all insurance claims submitted in the past three (3) years.
- k. All documents identifying and summarizing all pending litigation (excluding this action).
- l. All keys, documents, books, records and computer files, computer equipment, software, access codes, management files, equipment, furniture, supplies, and all passwords needed to access all software and computer files, e-mail account maintained at the on-site management office(s) (and all off-site financial records).
- m. Any and all other records pertaining to the management of Defendants as may be requested by the Receiver.

20. Defendants, their agents, and affiliates, and, unless otherwise stated therein, all creditors or any other person or entity claiming interest in or to any of the Receivership Estate, all those having claims against the Receivership Estate or Defendants, and all others who receive notice of this Order, are hereby enjoined, and shall not:

- a. Commit or permit any waste of the Receivership Estate, or remove, transfer, encumber, or otherwise dispose of any of the Receivership Estate;
- b. Demand, collect, receive, discount, or in any other way divert or use any of the Receivership Estate or any proceeds from the Receivership Estate;
- c. Directly or indirectly interfere in any manner with the discharge of the Receiver's duties under this Order or the Receiver's possession, and operation or management, of the Receivership Estate and Defendants;

- d. Expend, disburse, transfer, assign, sell, convey, seize, attach, devise, pledge, mortgage, create a security interest in, encumber, conceal, or in any manner whatsoever deal in or dispose of the whole or any part of the Receivership Estate including, but not limited to, the income derived therefrom;
- e. Do any act that will, or that may tend to, impair, defeat, divert, prevent, or prejudice the preservation of the Receivership Estate, including the income derived therefrom, or the preservation of Plaintiff's interest in the Receivership Estate and the income derived therefrom; or
- f. Institute any new, or continue any pending, legal action or process against the Receiver, the Receivership Estate and/or Defendants (with the exception of Plaintiff, who may continue this case for the purposes of maintaining the receivership over Defendants, exercising rights provided in the Loan Documents, and/or seeking judgment against Defendants related to cause(s) of action set forth in the associated pleadings).

PAYMENT AND PROTECTIONS OF RECEIVER, CLAIMS PROCEDURE, REPORTING, AND OTHER GENERAL PROVISIONS

21. The Receiver and his Professionals shall receive compensation for their services, payable from the Receivership Estate at their prevailing rates, which range from \$100.00 per hour to \$550.00 per hour, notwithstanding any statutory presumption. The Receiver and his Professionals shall also be entitled to be reimbursed for out-of-pocket expenses related to the performance of their duties. The compensation and reimbursed expenses shall be an administrative claim against the Receivership Estate and entitled to priority over any and all secured, priority, and unsecured claims. The Receiver and his Professionals shall issue invoices to the parties to this action, through their respective counsel (as applicable), on a monthly basis. The Receiver and his

Professionals may receive payment on a monthly basis, without further Court Order, provided no objections are filed with the Court and served upon the Receiver, his Professionals, and all other parties in interest within five (5) days after such invoices are sent by electronic mail to all parties' counsel of record. In the event that an objection is timely filed with the Court and serve upon the Receiver, Professionals, and all other parties in interest, the objecting party shall file a motion with this Court requesting that this Court determine the propriety of the fees sought. In the event that the objecting party fails to file a motion with the Court within five (5) days after objecting to the requested fees or expenses, its objections are waived. In the objection and the motion, the objecting party shall articulate with specificity which time or expense entries are objectionable and the reason for the objection. In the event that a motion is timely filed, the Receiver is authorized to pay himself and his Professionals those fees and expenses to which no objection has been raised. The Receiver and his Professionals shall be paid from the Receivership Estate; however, the Court may determine at a later date that such administrative expenses may be borne by Plaintiff, Defendants, or split.

22. Neither the Receiver nor his Professionals shall be liable for any claim, objection, liability, action, cause of action, cost, or expense of Plaintiff, Defendants, or the Receivership Estate arising out of or relating to events or circumstances occurring prior to this Order, including, without limitation, any contingent or unliquidated obligations and any liability from the performance of services rendered by third parties on behalf of Defendants, and any liability to which Defendants are currently or may ultimately be exposed to under any applicable laws pertaining to the ownership, use, or operation of the Receivership Estate (collectively, the foregoing are referred to as the "Pre-Receivership Liabilities").

23. The Receiver is to have no personal liability in connection with any liabilities, obligations, liens, or amounts owed to any creditors of Defendants as a result of his duties as Receiver, or with respect to any of the Receiver's duties hereunder, and the Receiver shall not be deemed an owner or operator under any statute establishing environmental liability. The Receiver and the Receiver's employees, agents, and attorneys shall have no personal liability or obligation and shall have no claim asserted against them in connection with the Receiver's duties under this Order for all actions taken in good faith in reliance upon the terms of this Order. All contracts executed by the Receiver shall indicate that he is acting solely in his capacity as Receiver of Defendants.

24. Any and all funds that may be advanced by Plaintiff to the Receiver pursuant to this Order shall: (a) be deemed made pursuant to contract; (b) be added to the amount of the indebtedness owed by Defendants to Plaintiff; (c) be secured by the liens and security interests in favor of Plaintiff under the Loan Documents on the Receivership Estate to the same extent and with same priority as the other indebtedness secured by all existing liens and security interest under the Loan Documents in favor of Plaintiff; and (d) accrue interest at the interest rate as provided under the Loan Documents in favor of Plaintiff. Moreover, all such advances, including interest on advances, shall be deemed a prior lien before the repayment of any and all other claims against the Receivership Estate (except for taxes and assessments having first priority as a matter of law) or proceeds of either of them. The Receiver is authorized to issue receivership certificate(s) to secure any such protective advances by Plaintiff. For the avoidance of doubt, except upon further order of this Court, nothing contained in this Order shall require Plaintiff to advance funds to the Receiver for the payment of operating costs or any other expense related to the Receivership Estate. All such protective advances shall be at Plaintiff's discretion.

25. To the extent the Receiver determines there are distributable assets of the Receivership Estate to creditors other than those holding a perfected lien on the property of the Receivership Estate, the Court shall order that the Receiver give notice to all creditors and any other known interested parties that they need to submit claims in accordance with MCL 554.1030. At any time before entry of an order approving the Receiver's final report, the Receiver may file with the Court an objection to a claim of a creditor, stating the basis for the objection. The net proceeds of the sale of the Receivership Estate ("Net Proceeds") shall be the gross sales price of the Receivership Property less customary closing costs, prorations, sales commissions, administrative costs of the Receivership, and other adjustments reasonably approved by the Receiver and Plaintiff. All Net Proceeds and other Income of or generated by the Receivership Estate shall be disbursed as follows:

- a. First, to the payment of any unpaid fees and expenses of the Receiver and his Professionals, and a reasonable "holdback" for reasonably anticipated post-closing expenses.
- b. Next, to the repayment of outstanding receivership certificates.
- c. Next, to Plaintiff until the indebtedness secured by security interests has been paid in full (subject to the rights of mechanic's lien claimants, if any).
- d. Finally, pursuant to further order of the Court.

26. Nothing stated herein shall restrain the Receiver, in his reasonable discretion, from distributing Income of the Receivership Estate to Plaintiff on a periodic basis during the Receivership so long as doing so is consistent with the Loan Documents and such distributable funds remain available after accounting for current and anticipated expenses of the Receivership Estate.

27. The Receiver shall file periodic reports with the Court, no less than quarterly, with respect to the discharge of his duties as Receiver, including descriptions and status of all attempts to market and/or sell the Receivership Estate and descriptions and status of any financing arrangements between the Plaintiff and the Receiver. The Receiver will allow Plaintiff and Defendants, and their respective agents, at reasonable times to examine and inspect the Receivership Estate and the Receiver's books and records. The Receiver shall submit his final accounting for approval by this Court within 30 days following the termination of the Receivership. Upon approval of the final accounting, the Receiver shall be discharged. The Receiver may at any time file a motion requesting that it be exonerated, discharged, and released from its appointment as receiver. A copy of the motion and accompanying notice of hearing must be served on all parties appearing in this action. The Receiver and its employees, agents, attorneys, contractors, and representatives shall incur no liability to any of Defendants or any third party for actions taken during the pendency of the Receivership established by this Order except for any liability resulting from the Receiver's gross negligence, intentional misconduct, or willful and material violation of any Order entered by this Court in this civil action or in any related action.

28. The Receiver may be removed for good cause shown by order entered by this Court on the filing of a motion by any party to this action seeking such relief and after a hearing is held on the motion. If the Receiver is removed, a successor receiver may be appointed by this Court on the request of Plaintiff. By no later than 30 calendar days following the removal of the Receiver pursuant to an Order entered by this Court, the Receiver shall submit a final accounting for approval by this Court and serve it on the parties. On the approval of the final accounting, the Receiver may be discharged from any further duties and responsibilities under this Order.

29. The Receivership established by this Order may be terminated by the entry of an order by this Court on the filing and service by Plaintiff of a motion requesting termination and after a hearing is held on the motion after prior written notice is served on all parties appearing in this action.

30. Notwithstanding any other provision of this Order, Plaintiff shall maintain all of its rights and remedies under the Loan Documents and applicable law, including the right to foreclose on any or all of the Receivership Estate and any other collateral for which it holds an enforceable security interest pursuant to the Loan Documents.

31. This Order binds each of Defendants, their agents, officers, managers, representatives, employees, affiliates, parents, subsidiaries, and their respective employees, all creditors of any of Defendants, and any other person or entity claiming an interest in or to the Receivership Estate.

This Order does NOT close the case.

IT IS SO ORDERED.

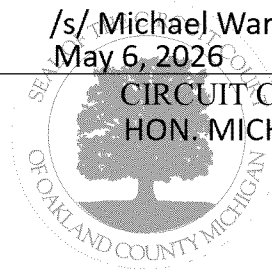
Dated: MAY 06 , 202 6

/s/ Michael Warren

May 6, 2026

CIRCUIT COURT JUDGE

HON. MICHAEL WARREN jn



ACCEPTANCE OF APPOINTMENT

Stevenson & Bullock P.L.C., by and through its agent Charles D. Bullock (P55550), accepts the duties of the Receiver as set forth in this Order and agrees to submit to the personal jurisdiction of this Court.

By: _____

Name: Charles D. Bullock

Date: _____, 2026

STIPULATION OF PARTIES

This Order is stipulated and agreed to in form and substance:

**FG AGENCY LENDING LLC, a
Delaware limited liability company**

DocuSigned by:

9071359CC4464F3

By: Peter Bio

Its: Partner

/s/ Benjamin Sobczak

DICKINSON WRIGHT PLLC

Benjamin Sobczak (P73567)

Kaitlyn Elias (P82957)

Jared Christensen (P83052)

Elle Kersten (P87856)

BSobczak@dickinson-wright.com

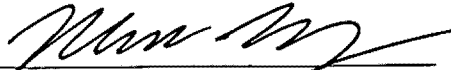
KElias@dickinson-wright.com

JChristensen@dickinson-wright.com

EKersten@dickinson-wright.com

Attorneys for Plaintiff

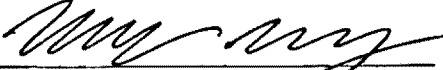
**WDB HOLDING MI, INC., a Delaware
corporation**



By: Mark Khoury (P82210)

Its: Vice President, Associate General
Counsel, Commercial Transactions

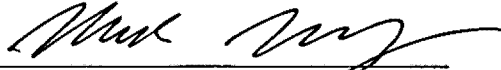
**SPARTAN PARTNERS CORPORATION,
a Michigan corporation**



By: Mark Khoury (P82210)

Its: Vice President, Associate General
Counsel, Commercial Transactions

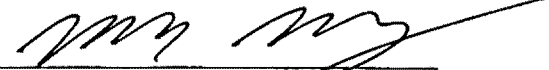
**SPARTAN PARTNERS HOLDINGS,
LLC, a Michigan limited liability company**



By: Mark Khoury (P82210)

Its: Vice President, Associate General
Counsel, Commercial Transactions

**SPARTAN PARTNERS SERVICES LLC,
a Michigan limited liability company**



By: Mark Khoury (P82210)

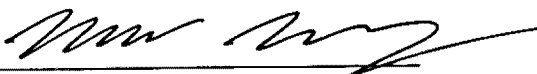
Its: Vice President, Associate General
Counsel, Commercial Transactions

**SPARTAN PARTNERS PROPERTIES
LLC, a Michigan limited liability company**



By: Mark Khoury (P82210)
Its: Vice President, Associate General
Counsel, Commercial Transactions

**SPARTAN PARTNERS LICENSING
LLC, a
Michigan limited liability company**



By: Mark Khoury (P82210)
Its: Vice President, Associate General
Counsel, Commercial Transactions

**AEY HOLDINGS, LLC, a Michigan limited
liability company**



By: Mark Khoury (P82210)
Its: Vice President, Associate General
Counsel, Commercial Transactions

**AEY CAPITAL LLC, a Michigan limited
liability company**



By: Mark Khoury (P82210)
Its: Vice President, Associate General
Counsel, Commercial Transactions

**THRIVE ENTERPRISES LLC, a Michigan
limited liability company**



By: Mark Khoury (P82210)
Its: Vice President, Associate General
Counsel, Commercial Transactions